IN THE NATIONAL COMPANY LAW TRIBUNAL
COURT IV, NEW DELHI
SPECIAL BENCH

COMPANY PETITION NO. (CAA) – 86/ND/2025
CONNECTED WITH
COMPANY APPLICATION NO. (CAA) - 83/ND/2025

Under Section 230-232 and other applicable provisions of the Companies Act, 2013 r/w the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016

IN THE MATTER OF:

JUPITER EXIM PRIVATE LIMITED
CIN: U51221DL2002PTC116299
PAN: AABCJ2884P
A Company incorporated under the provisions of the Companies Act, 1956, and having its registered office at 25/33, 3rd Floor, East Patel Nagar, New Delhi- 110008

... PETITIONER NO. 1/ TRANSFEROR COMPANY NO.1

AND

PIONEER CONVERTING AND ALLIED MACHINERY PRIVATE LIMITED
CIN: U29199DL2003PTC121437
PAN: AADCP0587D
A Company incorporated under the provisions of the Companies Act, 1956, and having its registered office at 25/33, 3rd Floor, East Patel Nagar, New Delhi-110008

...PETITIONER NO. 2/ TRANSFEROR COMPANY NO.2

AND

AKSS ENGINEERS PRIVATE LIMITED
CIN: U29299DL2002PTC115772
PAN: AAECA3384J
A Company incorporated under the provisions of the Companies Act, 1956, and having its registered office at 25/33, 3rd Floor, East Patel Nagar, New Delhi- 110008

...PETITIONER NO. 3/ TRANSFEROR COMPANY NO.3

AND

FASTFLOW VINCOM PRIVATE LIMITED
CIN: U51909DL2010PTC336610
PAN: AABCF4969R
A Company incorporated under the provisions of the Companies Act, 1956, and having its registered office at Shop No. 118, 1st Floor, Commercial Complex, Vardhman Market, West Enclave, Pitampura, New Delhi – 110034

...PETITIONER NO. 4/ TRANSFEROR COMPANY NO.4

AND

DESIRE MANAGEMENT SERVICES PRIVATE LIMITED
CIN: U24100DL2010PTC336611
PAN: AADCD4036D
A Company incorporated under the provisions of the Companies Act, 1956, and having its registered office at Shop No. 118, 1st Floor, Commercial Complex, Vardhman Market, West Enclave, Pitampura, New Delhi – 110034

...PETITIONER NO. 5/ TRANSFEROR COMPANY NO.5

AND

KUTIR COMMERCIAL PRIVATE LIMITED
CIN: U51909DL2008PTC349751
PAN: AADCK5701A
A Company incorporated under the provisions of the Companies Act, 1956, and having its registered office at Shop No. 118, 1st Floor, Commercial Complex, Vardhman Market, West Enclave, Pitampura, New Delhi – 110034

...PETITIONER NO. 6/ TRANSFEROR COMPANY NO.6

AND

MORNING GLORY VINIMAY PRIVATE LIMITED
CIN: U51909DL2008PTC349753
PAN: AAFCM8542B
A Company incorporated under the provisions of the Companies Act, 1956, and having its registered office at Shop No. 118, 1st Floor, Commercial Complex, Vardhman Market, West Enclave, Pitampura, New Delhi – 110034

...PETITIONER NO. 7/ TRANSFEROR COMPANY NO.7

AND

MORNING COMMOSALE PRIVATE LIMITED
CIN: U51909DL2008PTC338410
PAN: AAFCM8490E
A Company incorporated under the provisions of the Companies Act, 1956, and having its registered office at Shop No. 118, 1st Floor, Commercial Complex, Vardhman Market, West Enclave, Pitampura, New Delhi – 110034

...PETITIONER NO. 8/ TRANSFEROR COMPANY NO.8

WITH

PARAGON ADVISORY SERVICES PRIVATE LIMITED
CIN: U24100DL2010PTC336130
PAN: AAFCP4133K
A Company incorporated under the provisions of the Companies Act, 1956, and having its registered office at Shop No. 118, 1st Floor, Commercial Complex, Vardhman Market, West Enclave, Pitampura, New Delhi – 110034

...PETITIONER NO. 9/ TRANSFEREE COMPANY

AND

THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS

[For the sake of brevity, Transferor Company No. 1, Transferor Company No. 2, Transferor Company No. 3, Transferor Company No. 4, Transferor Company No. 5, Transferor Company No. 6, Transferor Company No. 7, Transferor Company No. 8 are hereinafter collectively referred to as "Transferor Companies". Further, Transferor Companies and Transferee Company are hereinafter collectively referred to as "Petitioner Companies"].

Order Delivered on: 29.07.2026

CORAM:

SHRI MAHENDRA KHANDELWAL
HON'BLE MEMBER (JUDICIAL)

SHRI YOGENDRA KUMAR SINGH
HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Applicant	:	Mr. Kartikeya Goel, Adv
For the OL	:	Mr. Kartikeya Asthana, Ms Siddhidatri Jha, Advocates
For the RD	:	Ms. Aruna M, Assistant Director, RD NR-1
For the IT Dept.	:	Mr Sunil Kumar Agarwal, SSC, Ms Monica Benjamin, JSC, Mr Gibran, JSC and Ms Laiba Arif, Adv.

ORDER

PER: MAHENDRA KHANDELWAL, MEMBER (JUDICIAL)

1. The present Joint Petition has been filed by Jupiter Exim Private Limited (**"Transferor Company No.1"**), Pioneer Converting and Allied Machinery Private Limited (**"Transferor Company No.2"**), AKSS Engineers Private Limited (**"Transferor Company No.3"**), Fastflow Vincom Private Limited, (**"Transferor Company No.4"**) Desire Management Services Private Limited, (**"Transferor Company No.5"**) Kutir Commercial Private Limited, (**"Transferor Company No.6"**) Morning Glory Vinimay Private Limited, (**"Transferor Company No.7"**) Morning Commosale Private Limited, (**"Transferor Company No.8"**) and Paragon Advisory Services Private Limited (**"Transferee Company"**) under Sections 230 to 232 and other applicable provisions of the Companies Act, 2013 read with the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 and the National Company Law Tribunal Rules, 2016, seeking sanction of the proposed **Scheme of Amalgamation** between the Petitioner Companies and their respective shareholders and creditors. A copy of the Scheme of Amalgamation has been placed on record.

2. The Transferor Company No.1 / Petitioner No. 1 i.e., Jupiter Exim Private Limited, CIN: U51221DL2002PTC116299 is a private limited company incorporated on 23.07.2002 under the provisions of the Companies Act, 1956, having its registered office situated at 25/33, IIIrd Floor, East Patel Nagar, Delhi, India, 110008. Thus, the registered office of the Company falls within the territorial jurisdiction of this Tribunal. The Authorised Share Capital and the Issued, Subscribed, and Paid-up Share Capital of the Company is mentioned at Pages 20-21 of the Petition.

3. The Transferor Company No. 2 /Petitioner Company No. 2 i.e., Pioneer Converting and Allied Machinery Private Limited, CIN: U29199DL2003PTC121437 is a private limited company incorporated on 23.07.2003 under the provisions of the Companies Act, 1956, having its registered office situated at 25/33, IIIrd Floor, East Patel Nagar, Central Delhi, Delhi, India, 110008. Thus, the registered office of the Company falls within the territorial jurisdiction of this Tribunal. The Authorised Share Capital, and the Issued, Subscribed, and Paid-up Share Capital of the Company is mentioned at Page No. 25 of the Petition.

4. The Transferor Company No. 3 /Petitioner Company No. 3 i.e., AKSS Engineers Private Limited, CIN: U29299DL2002PTC115772 is a private limited company incorporated on 11.06.2002 under the provisions of the Companies Act, 1956, having its registered office situated at 25/33, IIIrd Floor, East Patel Nagar, Central Delhi, Delhi, India, 110008. Thus, the registered office of the Company falls within the territorial jurisdiction of this Tribunal. The Authorised Share Capital, and the Issued, Subscribed, and Paid-up Share Capital of the Company is mentioned at Page No. 29 of the Petition.

5. The Transferor Company No.4 /Petitioner Company No. 4 i.e., Fastflow Vincom Private Limited, CIN: U51909DL2010PTC336610 is a private limited company incorporated on 09.04.2010 under the provisions of the Companies Act, 1956, having its registered office situated at Shop No. 118, 1st Floor

Commercial Complex Vardman Market, West Enclave Pitampura, New Delhi, Delhi, India, 110034. Thus, the registered office of the Company falls within the territorial jurisdiction of this Tribunal. The Authorised Share Capital, and the Issued, Subscribed, and Paid-up Share Capital of the Company is mentioned at Page No. 34 of the Petition.

6. The Transferor Company No.5 /Petitioner Company No. 5 i.e., Desire Management Services Private Limited, CIN: U24100DL2010PTC336611 is a private limited company incorporated on 16.04.2010 under the provisions of the Companies Act, 1956, having its registered office situated at Shop No. 118, 1st Floor Commercial Complex Vardman Market, West Enclave Pitampura, New Delhi, Delhi, India, 110034. Thus, the registered office of the Company falls within the territorial jurisdiction of this Tribunal. The Authorised Share Capital, and the Issued, Subscribed, and Paid-up Share Capital of the Company is mentioned at Pages 38-39 of the Petition.

7. The Transferor Company No.6 /Petitioner Company No. 6 i.e., Kutir Commercial Private Limited, CIN: U51909DL2008PTC349751 is a private limited company incorporated on 06.11.2008 under the provisions of the Companies Act, 1956, having its registered office situated at Shop No. 118, 1st Floor Commercial Complex Vardman Market, West Enclave Pitampura, New Delhi, Delhi, India, 110034. Thus, the registered office of the Company falls within the territorial jurisdiction of this Tribunal. The Authorised Share Capital, and the Issued, Subscribed, and Paid-up Share Capital of the Company is mentioned at Page No. 43 of the Petition.

8. The Transferor Company No.7 /Petitioner Company No. 7 i.e., Morning Glory Vinimay Private Limited, CIN: U51909DL2008PTC349753 is a private limited company incorporated on 06.11.2008 under the provisions of the Companies Act, 1956, having its registered office situated at Shop No. 118, 1st Floor Commercial Complex Vardman Market, West Enclave Pitampura, New Delhi, Delhi, India, 110034. Thus, the registered office of the Company falls within

the territorial jurisdiction of this Tribunal. The Authorised Share Capital, and the Issued, Subscribed, and Paid-up Share Capital of the Company is mentioned at Page No. 48 of the Petition.

9. The Transferor Company No. 8/Petitioner Company No. 8 i.e., Morning Commosale Private Limited, CIN: U51909DL2008PTC338410 is a private limited company incorporated on 06.11.2008 under the provisions of the Companies Act, 1956, having its registered office situated at Shop No. 118, 1st Floor Commercial Complex Vardman Market, West Enclave Pitampura, New Delhi, Delhi, India, 110034. Thus, the registered office of the Company falls within the territorial jurisdiction of this Tribunal. The Authorised Share Capital, and the Issued, Subscribed, and Paid-up Share Capital of the Company is mentioned at Page No. 52 of the Petition.

10. The Transferee Company/Petitioner Company No. 9 i.e., Paragon Advisory Services Private Limited, CIN: U24100DL2010PTC336130 is a private limited company incorporated on 10.04.2010 under the provisions of the Companies Act, 1956, having its registered office situated at Shop No. 118, 1st Floor Commercial Complex Vardman Market, West Enclave Pitampura, New Delhi, Delhi, India, 110034. Thus, the registered office of the Company falls within the territorial jurisdiction of this Tribunal. The Authorised Share Capital, and the Issued, Subscribed, and Paid-up Share Capital of the Company is mentioned at Page No. 57 of the Petition.

11. The Petitioner Companies submit that the proposed Scheme of Amalgamation would have the following rationale and benefits: -

    a) All the Transferor Companies and the Transferee Company are closely held unlisted private limited Group Companies under common management and control. The proposed amalgamation of the Transferor Companies with the Transferee Company would result in consolidation of various Group Companies and pooling of their resources into a single entity.

b) All the Transferor Companies and the Transferee Company are engaged in similar business activities of purchase, sale, trading and dealing in various industrial and commercial products and services. It would be advantageous to combine the activities and operations of all these Companies in a single entity, to grow the business in an efficient manner, achieve operational synergies and benefits from economies of scale by combining all the Transferor companies with the Transferee Company by way of amalgamation; and build strong capability to effectively meet future challenges in a competitive business environment. The proposed amalgamation will enable integration of respective business activities of the Transferor Companies with those of the Transferee Company.

c) The proposed Amalgamation would result in business synergy, pooling of physical, financial and human resources of these Companies for the optimal utilization of these factors in the combined entity.

d) The proposed amalgamation will provide greater efficiency in fund management and unfettered access to fund flow generated by the combined business which can be deployed more efficiently to fund organic and inorganic growth opportunities.

e) The proposed Scheme of Amalgamation will result in usual economies of a centralized and a large company including elimination of redundancies, reduction of overheads, optimal utilization of financial, human and other resources and enhancement of overall business efficiency. The proposed Scheme of Amalgamation will enable these Companies to combine their managerial and operating strength, to build a wider capital and financial base and to promote and secure overall growth.

f) The amalgamation will result in significant reduction in multiplicity of legal and regulatory compliances which at present are required to be

made separately by the Transferor Companies and the Transferee Company.

g) The proposed Amalgamation will streamline and simplify the shareholding structure.

h) The proposed amalgamation would enhance the shareholders' value of the Transferor and the Transferee Companies.

i) The proposed Scheme of Amalgamation will have beneficial impact on the Transferor and the Transferee Companies, their shareholders, employees and other stakeholders and all concerned.

12. The Appointed Date under the proposed Scheme of Amalgamation is 1st April, 2025.

13. The First Motion Joint Application being C.A. (CAA) No. 83/ND/2025 was filed before this Tribunal. Vide Order dated 04.11.2025, this Tribunal dispensed with the requirement of convening the meetings of the Equity Shareholders and Unsecured Creditors of the Transferor Companies/Petitioner Company Nos. 1 to 8 and the Transferee Company/Petitioner Company No. 9, in view of the consent affidavits placed on record. This Tribunal further noted that, since there were no Secured Creditors of the Transferor Companies/Petitioner Company Nos. 1 to 8 and the Transferee Company/Petitioner Company No. 9, the necessity of convening their meetings did not arise.

14. This Tribunal, vide Order dated 25.11.2025, directed issuance of notice to the authorities specified under Section 230(5) of the Companies Act, 2013 read with Rules 8 and 16 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 for submitting their representation, if any. The Petitioner Companies were further directed to take steps for service of notice in Form CAA-3 upon the Central Government, through the Ministry of

Corporate Affairs to the Jurisdictional Regional Director(s), the concerned Registrar of Companies, the concerned Official Liquidator and the concerned Income Tax Authorities through the relevant email addresses mentioned in Annexures I to IV to the said Order. Notice was also directed to be issued to the Reserve Bank of India.

15. Notice was also directed to be published in two prominent and widely circulating daily newspapers, one English and one in vernacular, namely, "Business Standard" (English & Hindi language, Delhi Edition), in terms of Rule 7 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016. The Petitioner Companies were further directed to file an affidavit evidencing proof of service within 7 days and an affidavit evidencing proof of publication.

16. The Petitioner Companies, in compliance with the Order dated 25.11.2025 and disclosed that they have effected publication of notice in "Business Standard" (English, Delhi Edition) and "Business Standard" (Hindi, Delhi Edition), both dated 13.12.2025. In addition to the public notice, notices were duly served upon the Regional Director, the Registrar of Companies, the Official Liquidator, the Income Tax Department, the Reserve Bank of India, in compliance with the Order dated 25.11.2025.

17. Pursuant to the notices issued by this Tribunal, the Regional Director, Northern Region, Ministry of Corporate Affairs, the Official Liquidator and the Income Tax Department have filed their respective representations/reports in the present matter.

18. The Regional Director, Northern Region, Ministry of Corporate Affairs, in its Representation/Affidavit dated 20.02.2026, has placed on record the observations contained in the Report of the Registrar of Companies, NCT of Delhi & Haryana dated 28.01.2026 with regard to the proposed Scheme of Amalgamation. The Petitioner Companies have filed a Reply Affidavit dated

19.03.2026, furnishing their response to the said observations. The observations of the Registrar of Companies, as reproduced in the Affidavit of the Regional Director, and the response of the Petitioner Companies thereto are summarised as under:

Observations of the Registrar of Companies as reproduced in the Representation/Affidavit of the Regional Director dated 20.02.2026	**Response of the Petitioner Companies vide Reply Affidavit dated 19.03.2026**
(i) It was observed that in case of Transferor Company -7, as per the financial statements for FY 2024-25, the company has MSME dues amounting Rs. 103.89 lacs and clarification was sought in this regard.	i. The Petitioner Companies submitted that with regard to the MSME dues, amounting to Rs. 103.89 Lakhs in the Transferor Company No. 7 as reflected in the audited financial statements for FY 2024-25, the following submissions respectfully made: a. The Learned ROC has observed that the Transferor Company No. 7 had outstanding dues amounting to ~103.89 Lakhs payable to MSME creditors as on 31st March, 2025, as appearing in the financial statements. b. In this regard, it is respectfully clarified that the aforesaid amount pertained to a single MSME. namely M/s Shagun Enterprises. The entire amount of ~1,03, 75,018/- was duly paid in full by the Transferor Company No. 7 on 3rd April l, 2025. c. It is further submitted that the payment was made within 45 days from the date of the respective invoice(s). Accordingly, requiring the filing provisions of e-Form MSME-1 with the Registrar of Companies were not attracted in the present case. d. In view of the above, it is respectfully submitted that no MSME dues, as per the audited financial statements for FY 2024-25, remain outstanding in the Transferor Company No. 7 as on the date of the present Affidavit.
(ii) It was observed that in case of Transferor Company -8, as per the financial statements for FY 2024-25, the company has quantum of financial assets which is more than 50% of the total assets. Further, other income is also from financial assets, which is also more than 50 % of total income. Therefore, the company to be deemed to be NBFC.	ii.The Petitioner Companies in this regard, made the following submissions : a) As set out in the Scheme of Amalgamation, Company Petition and other papers, the Transferor Company No. 8 is engaged in the business of purchase, sale, trading and dealing in packaging material, paper and paper products, other related and ancillary

Clarification was sought on each of the said observations.	activities and has also made investments in its Group Company. The Transferor Company No. 8 has deployed almost its entire funds in the Equity Shares of the Company, which form part of the same group. b. The Transferor Company No. 8 is neither carrying on the business of financing/lending as its principal business activity nor has it raised any public funds. Accordingly, the Transferor Company No. 8 is a Core Investment Company (CIC) and does not require registration as a Non-Banking Financial Company (NBFC) with the Reserve Bank of India under the applicable RBI framework. The relevant RBI Notification is enclosed herewith and marked as Annexure: 1.
(iii) It was observed that the Transferee Company should comply with the provisions of Section 232(3)(i) of the Companies Act, 2013 regarding the fee payable on its revised authorised share capital.	iii. The Petitioner Companies submitted that, we wish to clarify and confirm that Clause 12.3 of the Scheme of Amalgamation clearly provides that in terms of the provisions of Section 232(3)(i) of Companies Act, 2013, the Petitioner Transferee Company will pay the balance fee and other charges, if any, on the increase in its authorized share capital pursuant to the Scheme of Amalgamation. We once again confirm and undertake that the Transferee Company will comply with the provisions of Section 232(3)(i) of the Companies Act, 2013, and other applicable provisions, if any, and make the requisite payment to the Registrar of Companies and other authorities, if any, on increase of its authorised capital subsequent to the sanction of the Scheme of Amalgamation.

19. Upon consideration of the Reply Affidavit filed by the Petitioner Companies in response to the observations contained in the Report of the Regional Director, it is noted that, vide Order dated 14.07.2026, the authorised representative of the Regional Director submitted before this Tribunal that the Regional Director had no further observations to make.

20. The Official Liquidator has filed its Report dated 19.01.2026, pursuant to the notice issued by this Tribunal. Upon receipt of the notice, the Petitioner Companies were called upon to furnish the requisite information and records for the purpose of preparation of the Report, which were duly furnished. It has further been reported that no complaint or objection against the proposed Scheme of Amalgamation has been received from any person interested in the Scheme. It is also noted that, vide Order dated 20.01.2026, the learned counsel appearing on behalf of the Official Liquidator submitted before this Tribunal that the Official Liquidator had already filed its Report and had no objection to the proposed Scheme of Amalgamation.

21. The Official Liquidator has further reported that, upon examination of the information and documents furnished by the Petitioner Companies, the affairs of the Transferor Companies do not appear to have been conducted in a manner prejudicial to the interests of their members or to public interest. The Official Liquidator has accordingly submitted that this Tribunal may pass such order(s) as it may deem fit and proper in the facts and circumstances of the case.

22. Pursuant to the notice issued by this Tribunal vide Order dated 25.11.2025, the Company Petition, together with the Scheme of Amalgamation and other relevant documents, was served upon the Income Tax Department. The Income Tax Department thereafter furnished Reports/NOCs in respect of Transferor Company No.1 - Jupiter Exim Private Limited and Transferor Company No.6 - Kutir Commercial Private Limited, whereupon the Petitioner Companies filed a Reply Affidavit dated 20.02.2026, placing the said Reports/NOCs on record. In the said Reply Affidavit, it was also stated that no report or response had been received from the Income Tax Department in respect of Transferor Company Nos.2 to 5, 7 and 8 and the Transferee Company and that, in terms of Section

230(5) of the Companies Act, 2013, where no representation is received within the prescribed period, it is presumed that the concerned authority has no comments or objections to offer.

23. Subsequently, the Income Tax Department filed its Consolidated Report dated 06.04.2026, wherein it, inter alia, reserved its rights under the provisions of the Income Tax Act, 1961 to initiate and/or continue proceedings and recover any tax demand, if any, stated that the provisions of Section 72A of the Income Tax Act, 1961 shall be complied with, and thereafter set out company-wise observations regarding the status of assessment proceedings, tax demands, if any, and its stand on the proposed Scheme in respect of the Petitioner Companies. The Petitioner Companies responded to the observations made by the Income Tax Department by filing a Reply Affidavit.

24. It is further noted that, vide Order dated 14.07.2026, learned Proxy Counsel appearing on behalf of the Income Tax Department submitted before this Tribunal that the Petitioner Company had filed an Affidavit-cum-Undertaking on behalf of the Transferee Company undertaking to discharge any income-tax liabilities of the Transferor Companies, if any, arising in future.

25. Certificates issued by the respective Statutory Auditors of the Transferor Companies and the Transferee Company have been placed on record certifying that they have examined the accounting treatment proposed in the Scheme of Amalgamation in terms of the provisions of Sections 230 to 232 of the Companies Act, 2013 and the rules framed thereunder. The Statutory Auditors have further certified that the accounting treatment contained in the Scheme is in conformity with the applicable Accounting Standards prescribed under Section 133 of the Companies Act, 2013 read with the rules made thereunder.

26. The Hon'ble Supreme Court in ***Miheer H. Mafatlal vs Mafatlal Industries Ltd., JT 1996 (8) 205*** while considering the scope of the jurisdiction of the Company Court in respect of matters of Sanction of the Scheme of Amalgamation as per the provisions of Sections 391 to Section 394 of the Companies Act, 1956, observed as under:

> *"it is the commercial wisdom of the parties to the scheme who have taken an informed decision about the usefulness and propriety of the scheme by supporting it by the requisite majority vote that has to be kept in view by the Court. The Court certainly would not act as a court of appeal and sit in judgment over the informed view of the concerned parties to the compromise as the same would be in the realm of corporate and commercial wisdom of the concerned parties. The Court has neither the expertise nor the jurisdiction to delve deep into the commercial wisdom exercised by the creditors and members of the company who have ratified the Scheme by the requisite majority. Consequently the Company Court's jurisdiction to that extent is peripheral and supervisory and not appellate."*

27. In view of the law laid down by the Hon'ble Supreme Court in *Miheer H. Mafatlal* (supra), this Tribunal is not required to examine the commercial merits or demerits of the proposed Scheme or substitute its own commercial wisdom for that of the shareholders and creditors who have approved the Scheme in accordance with law. The jurisdiction of this Tribunal is supervisory in nature and is confined to examining whether the statutory provisions have been complied with and whether the Scheme is fair, reasonable and not contrary to law or public policy.

28. This Tribunal has considered the Scheme of Amalgamation, the material placed on record, the Reports submitted by the statutory authorities and the replies, affidavits and undertakings filed by the Petitioner Companies in response thereto.

29. The Scheme has been approved by the requisite stakeholders in accordance with law. Having regard to the entire material placed on record and the principles governing the exercise of jurisdiction under Sections 230 to 232 of the Companies Act, 2013, this Tribunal is satisfied that the Scheme is fair, reasonable and not contrary to any provision of law or public policy. Accordingly, there appears to be no legal impediment in sanctioning the present Scheme.

30. Accordingly, the Scheme of Amalgamation annexed with the Company Petition is hereby sanctioned under Sections 230 to 232 and other applicable provisions of the Companies Act, 2013, subject to the condition that all liabilities accruing in the Transferor Companies shall stand transferred to the Transferee Company without prejudice to the provisions of Section 240 of the Companies Act, 2013. It is further clarified that the provisions of the Companies Act, 2013, including Section 6 thereof, shall prevail in the event of any inconsistency between the Scheme and the provisions of the Act. It is further clarified that the sanction of the Scheme shall not prejudice the right of any statutory authority, including the Income Tax Department, to proceed in accordance with law in respect of any existing or future statutory liability, demand or claim.

31. Consequently, sanction is hereby granted to the Scheme of Amalgamation under Sections 230 to 232 and other applicable provisions of the Companies Act, 2013, with the following directions: -

(i) The Petitioner Companies shall remain bound to comply with all the statutory requirements in accordance with law.

(ii) Notwithstanding the sanction granted herein, if any deficiency is found or any violation is committed qua any provision of the Companies Act, 2013 or any other applicable law, statutory rule or regulation, the sanction granted to the Scheme shall not preclude the competent authorities from

taking appropriate action, in accordance with law, against the concerned persons, directors or officials of the Petitioner Companies.

(iii) While sanctioning the Scheme, it is clarified that this Order shall not be construed as granting any exemption from payment of stamp duty, taxes, cess, charges or any other statutory dues, if any, payable in accordance with law, nor shall it be construed as granting exemption from obtaining any approval, permission or compliance which may be required under any applicable law.

32. This Tribunal further directs with respect to the Transferor Companies and the Transferee Company, as under: -

(i) The Appointed Date proposed under the Scheme of Amalgamation, i.e., 01.04.2025, is approved.

(ii) Upon the Scheme becoming effective in accordance with its terms, the Transferor Companies shall stand dissolved without undergoing the process of winding up.

(iii) All the assets, rights, title, interests, contracts, permits, licences, approvals and other entitlements of the Transferor Companies shall, in terms of the Scheme of Amalgamation, stand transferred to and vest in the Transferee Company without any further act, deed or instrument.

(iv) All the employees of the Transferor Companies shall become the employees of the Transferee Company with effect from the Appointed Date, without any interruption in service and on the same terms and conditions on which they are engaged by the Transferor Companies on the Effective Date. The services of such employees with the Transferor Companies up to the Effective Date shall be taken into account for the purposes of all benefits to which they may be eligible, including payment of retrenchment compensation, gratuity and other terminal benefits.

(v) All the liabilities, duties and obligations of the Transferor Companies shall, in terms of the Scheme of Amalgamation and the applicable provisions of the Companies Act, 2013, stand transferred to and become the liabilities, duties and obligations of the Transferee Company.

(vi) All legal, judicial, quasi-judicial or other proceedings pending by or against the Transferor Companies shall continue by or against the Transferee Company in accordance with the provisions of the Scheme and applicable law.

(vii) Liberty is reserved to any person interested to approach this Tribunal for such further directions as may be considered necessary in relation to the implementation of the Scheme.

33. The Petitioner Companies shall, within thirty days from the date of receipt of a certified copy of this Order, cause the same to be delivered to the Registrar of Companies, NCT of Delhi & Haryana, for registration. Upon such certified copy being delivered and registered in accordance with law, the Transferor Companies shall stand dissolved without undergoing the process of winding up, and the Registrar of Companies shall place all documents relating to the Transferor Companies on the file maintained in respect of the Transferee Company and consolidate the records of all the Petitioner Companies accordingly.

34. In compliance with the requirement of Section 232(7) of the Companies Act, 2013 read with Rule 21 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016, the Transferee Company shall, until the Scheme is fully implemented, file with the Registrar of Companies a statement in Form No. CAA-8, along with the prescribed fee, within 210 days from the end of each financial year, duly certified by a Chartered Accountant or a Cost Accountant or a Company Secretary in Practice,

indicating whether the Scheme is being complied with in accordance with the Order of this Tribunal.

35. The Company Petition stands disposed of in the above terms.
Let a copy of the Order be served upon the parties.

Sd/-

YOGENDRA KUMAR SINGH
MEMBER (TECHNICAL)

Sd/-

MAHENDRA KHANDELWAL
MEMBER (JUDICIAL)